

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	)))	Docket No. RM26-4-000
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**REPLY COMMENTS OF
THE MISO TRANSMISSION OWNERS**

The MISO Transmission Owners¹ submit these comments in reply to various initial comments submitted in response to the Advance Notice of Proposed Rulemaking

¹ The MISO Transmission Owners for this filing consist of: Ameren Services Company, as agent for Union Electric Company d/b/a Ameren Missouri, Ameren Illinois Company d/b/a Ameren Illinois and Ameren Transmission Company of Illinois; American Transmission Company LLC; Big Rivers Electric Corporation; Central Minnesota Municipal Power Agency; Citizens Electric Corporation; City Water, Light & Power (Springfield, IL); Cleco Power LLC; Cooperative Energy; Dairyland Power Cooperative; Duke Energy Business Services, LLC for Duke Energy Indiana, LLC; East Texas Electric Cooperative; Entergy Arkansas, LLC; Entergy Louisiana, LLC; Entergy Mississippi, LLC; Entergy New Orleans, LLC; Entergy Texas, Inc.; Great River Energy; GridLiance Heartland LLC; Hoosier Energy Rural Electric Cooperative, Inc.; Indiana Municipal Power Agency; Indianapolis Power & Light Company d/b/a AES Indiana; Lafayette Utilities System; MidAmerican Energy Company; Minnesota Power (and its subsidiary Superior Water, L&P); Montana-Dakota Utilities Co.; Northern Indiana Public Service Company LLC; Northern States Power Company, a Minnesota corporation, and Northern States Power Company, a Wisconsin corporation, subsidiaries of Xcel Energy Inc.; Northwestern Wisconsin Electric Company; Otter Tail Power Company; Prairie Power, Inc.; Republic Transmission, LLC; Southern Illinois Power Cooperative; Southern Indiana Gas & Electric Company (d/b/a CenterPoint Energy Indiana South); Southern Minnesota Municipal Power Agency; Wabash Valley Power Association, Inc.; and Wolverine Power Supply Cooperative, Inc. Indianapolis Power & Light Company d/b/a AES Indiana does not join Part I.D of these comments.

(“ANOPR”) released by the Secretary of Energy (“Secretary”) on October 23, 2025² and assigned to the above-captioned docket.³

The MISO Transmission Owners continue to support and share the ANOPR’s goals of interconnecting large loads in a timely, orderly, and reliable manner.⁴ However, the breadth and diversity of comments filed in response to the ANOPR show that rapid interconnection of large loads is a novel and challenging issue that may not be best suited for generic action at this juncture. The MISO Transmission Owners encourage the Commission to proceed in a manner that supports the exercise of Federal Power Act (“FPA”) section 205⁵ rights to address the interconnection of large loads, and avoids unintended outcomes.

Before discussing specific ANOPR principles, a few overarching themes are worth highlighting. First, as further explained in section I.A.1, the Commission should avoid

² *Interconnection of Large Loads to the Interstate Transmission System*, Advance Notice of Proposed Rulemaking, Docket No. RM26-4-000 (Oct. 23, 2025) (“ANOPR”); see *Interconnection of Large Loads to the Interstate Transmission System*, Notice Inviting Comments, Docket No. RM26-4-000 (Oct. 27, 2025). The Secretary issued the ANOPR pursuant to section 403 of the Department of Energy Organization Act, directing the Commission to initiate rulemaking procedures to consider the ANOPR and its potential reforms for the interconnection of large loads to the transmission system. ANOPR at P 1 (citing 42 U.S.C. § 7173).

³ Given the volume of initial comments submitted in this proceeding and the comparatively short response period, the MISO Transmission Owners have not attempted to address every discrete argument in the numerous expansive comments submitted. Omission of a response to any comments should not be viewed by the Commission or other participants as the MISO Transmission Owners’ endorsement of, agreement with, or acceptance of any position taken by any other participant in this proceeding.

⁴ Initial Comments of the MISO Transmission Owners, Docket No. RM26-4-000 (Nov. 21, 2025) (“MISO Transmission Owners’ Initial Comments”).

⁵ 16 U.S.C. § 824d.

taking action that stalls the ongoing efforts at the state and regional levels to advance the interconnection of large loads.⁶ The MISO Transmission Owners, in conjunction with MISO and other stakeholders in the MISO region, have been proactive in addressing the underlying concerns raised in the ANOPR. These efforts have ushered in more than 14.4 gigawatts (“GW”) of large load interconnections since the 2022 MISO Transmission Expansion Plan cycle⁷ with many of these additions coming through the Expedited Project Review Process (“EPR”) in MISO.⁸ Many commentators have pointed to the MISO region as a leader in this area.⁹ Thus, any action the Commission takes that disrupts or frustrates

⁶ See, e.g., Comments of the Midcontinent Independent System Operator, Inc., Docket No. RM26-4-000, at 20, 33 (Nov. 21, 2025) (“Initial Comments of MISO”) (urging the Commission not to take action that “bypass[es] working directly with MISO members and states” and avoid “diverting industry attention to developing a ‘one-size-fits all approach’”); Initial Comments of the Southwest Power Pool Transmission Owner Group, Docket No. RM26-4-000, at 4 (Nov. 21, 2025) (“Initial Comments of SPP TO Group”) (“The ANOPR should not halt or delay Commission action on regional or individual utility proposals that provide for the expedited interconnection of large loads.”); Comments of Indiana Energy Association, Docket No. RM26-4-000, at 1, 4 (Nov. 24, 2025) (“Initial Comments of Indiana Energy Association”); Comments of the U.S. Chamber of Commerce in Response to the Federal Regulatory Commission’s Notice Inviting Comments, Docket No. RM26-4-000, at 2 (Nov. 21, 2025) (“Initial Comments of U.S. Chamber of Commerce”); Initial Comments of the Arkansas Public Service Commission, Docket No. RM26-4-000, at 2 (Nov. 21, 2025) (“Initial Comments of Arkansas PSC”); Initial Comments of the Public Service Commission of the State of Missouri, Docket No. RM26-4-000, at 4 (Nov. 21, 2025) (“Initial Comments of Missouri PSC”).

⁷ MISO Transmission Owners’ Initial Comments at 3-5 (providing examples of MISO Transmission Owners’ actions in the MISO region to facilitate the interconnection of 14.4 GW of large load as well as describing the “effort” to develop best practices “by the MISO Transmission Owners, MISO, states, and industry participants around the country”).

⁸ See MISO Transmission Owners’ Initial Comments at 7-8, 11 (describing the EPR process).

⁹ See *infra* section I.A.1.

these ongoing efforts will be detrimental to the ANOPR’s goal of faster interconnections for large load.

Second, the MISO Transmission Owners are concerned that broad assertion of any untested jurisdiction by the Commission may trigger litigation, reduce large load investor certainty, delay interconnection, and thwart ongoing processes at the regional and state levels.¹⁰ As explained in section I.B of these reply comments, supporting the expedient interconnection of large loads does not require the Commission to upset long-established jurisdictional divides.

Third, stakeholder comments illustrate how flexibility and the ability to creatively solve problems on a transmission-owner or regional level will facilitate the goals of the ANOPR—i.e., speed and efficiency of large load interconnection—while still respecting state authority. For example, the comments about Principle Two’s 20 megawatt (“MW”) threshold made it abundantly clear that a bright-line 20 MW threshold failed to account for differences and how load interacts with the transmission system. The 20 MW threshold

¹⁰ See, e.g., Initial Comments of MISO at 20-21; Initial Comments of the National Association of Regulatory Utility Commissioners, Docket No. RM26-4-000, at 3-6 (Nov. 21, 2025) (“Initial Comments of NARUC”); ,Comments of Equinix, Inc., Docket No. RM26-4-000, at 5 (Nov. 21, 2025) (“Initial Comments of Equinix”) (asserting that large load interconnections “needed to serve the national interests identified in the Proposed ANOPR cannot wait for jurisdictional debates to be settled or for lengthy, uncoordinated procedural processes to work their way to conclusion”); Initial Comments of the Louisiana and Mississippi Public Service Commissions, Docket No. RM26-4-000, at 7-8 (Nov. 21, 2025) (“Initial Comments of Louisiana and Mississippi Commissions”); Comments of the AES Corporation, Docket No. RM26-4-000, at 5 (Nov. 21, 2025) (“Initial Comments of AES”); Initial Comments of NRG Energy, Inc., Docket No. RM26-4-000, at 5-6 (Nov. 19, 2025) (“Initial Comments of NRG”); Motion to Intervene and Comments of DTE Electric Company, Docket No. RM26-4-000, at 13-17 (Nov. 21, 2025) (“Initial Comments of DTE”); Comments of the New York State Department Utility Intervention Unit, Docket No. RM26-4-000, at 3-4 (Nov. 21, 2025) (“Initial Comments of N.Y. State Utility Intervention Unit”).

seemed likely to cause the unintended consequence of sweeping in many loads that, while large, are not data center projects and further exacerbating thorny jurisdictional issues.¹¹

¹¹ These commenters propose higher thresholds ranging from 30 MW to 300 MW to address these issues. *See, e.g.*, Comments of the Georgia Public Service Commission, Docket No. RM26-4-000, at 2 (Nov. 19, 2025) (100 MW); Initial Comments of NRG at 9, 15 (230 kV or above); Initial Comments of U.S. Chamber of Commerce at 4 (75 or 100 MW); Comments of the Maryland Public Service Commission, Docket No. RM26-4-000, at 5-6 (Nov. 21, 2025) (at least 100 MW); Comments of ITC Holdings Corporation, Docket No. RM26-4-000, at 3 (Nov. 21, 2025) (“Initial Comments of ITC”) (50 to 100 MW); Initial Comments of the New Mexico Public Regulation Commission, Docket No. RM26-4-000, at 5 (Nov. 21, 2025) (“Initial Comments New Mexico PRC”) (minimum of 50 MW); Joint Comments of the Industrial Customer Organizations, Docket No. RM26-4-000, at 25-27 (Nov. 21, 2025) (minimum of 75 to 100 MW); Comments of American Transmission Company LLC, Docket No. RM26-4-000, at 8-9 (Nov. 21, 2025) (“Initial Comments of ATC”) (200 MW); Comments of Duke Energy Corporation, Docket No. RM26-4-000, at 15-16 (Nov. 21, 2025) (“Initial Comments of Duke Energy”) (300 MW or no lower than 100 MW); Initial Comments of the Organization of PJM States, Inc., Docket No. RM26-4-000, at 10 (Nov. 21, 2025) (“Initial Comments of OPSI”) (25 to 100 MW); Comments of the Edison Electric Institute, Docket No. RM26-4-000, at 5-8 (Nov. 21, 2025) (“Initial Comments of EEI”) (100 MW); Comments of Old Dominion Electric Cooperative, Docket No. RM26-4-000, at 4-5 (Nov. 21, 2025) (“Initial Comments of ODEC”) (50 MW); Initial Comments of DTE at 17 (50 to 100 MW); Comments of the Entergy Operating Companies, Docket No. RM26-4-000, at 21 (Nov. 21, 2025) (“Initial Comments of Entergy”) (100 MW); Comments of Alliant Energy Corporate Services, Inc., Docket No. RM26-4-000, at 4-5 (Nov. 21, 2025) (100 MW); Preliminary Rulemaking Comments of the Southern Companies, Docket No. RM26-4-000, at 8 (Nov. 21, 2025) (100 MW); Comments of Meta Platforms, Inc., Docket No. RM26-4-000, at 4 (Nov. 21, 2025) (75 MW); Initial Comments of Consumers Energy Company, Docket No. RM26-4-000, at 8-9 (Nov. 21, 2025) (“Initial Comments of Consumers Energy”) (100 MW); Comments of the Clean Energy Buyers Association in Response to Notice Inviting Comments, Docket No. RM26-4-000, at 5 (Nov. 21, 2025) (75 MW); Comments of Geronimo Power, LLC, Docket No. RM26-4-000, at 15 (Nov. 21, 2025) (“Initial Comments of Geronimo Power”) (100 MW); Comments of Northeastern Rural Electric Membership Corporation, Docket No. RM26-4-000, at 3 (Nov. 21, 2025) (“Initial Comments of NREMC”) (100 MW); Comments of the Indicated PJM Transmission Owners, Docket No. RM26-4-000, at 2-3 (Nov. 21, 2025) (“Initial Comments of Indicated PJM Transmission Owners”) (200 MW); Comments of the American Clean Power Association on Proposed Advance Notice of Proposed Rulemaking, Docket No. RM26-4-000, at 3-4 (Nov. 21, 2025) (100 MW); Comments of FirstEnergy Service Company, Docket No. RM26-4-000, at 2 (Nov. 21, 2025) (“Initial Comments of
(continued . . .)

For this reason, rather than a one-size-fits-all approach, the MISO Transmission Owners support an approach that provides flexibility and encourages creative individual or regional FPA section 205 filings to craft innovative solutions to support the rapid growth of artificial intelligence and large load interconnections. To the extent the Commission takes further action in this proceeding, the Commission should extend the “Independent Entity Variation” to any final rule.

I. REPLY COMMENTS

A. The Commission Should Not Take Action that Would Upset Ongoing Efforts to Address the Very Issues Highlighted in the ANOPR or Reduce State and Regional Flexibility to Tailor Solutions.

As demonstrated in our initial comments, the MISO Transmission Owners are working proactively with others in the MISO region, both at the state and federal levels, to ensure that large loads are interconnected in an efficient manner, including supporting the development of the generation and transmission necessary to integrate large loads efficiently, reliably, and in a manner that avoids unfair cost shifts. The MISO Transmission Owners, like a majority of the Regional Transmission Organizations (“RTOs”)/independent system operators (“ISOs”), states, and commenters, do not support generic action at this time.¹² Instead of taking generic action, the MISO Transmission

FirstEnergy”) (200 MW); Comments of Arevia Power, LLC, Docket No. RM26-4-000, at 1 (Nov. 21, 2025) (99 MW); Comments of the PSEG Companies, Docket No. RM26-4-000, at 25-26 (Nov. 21, 2025) (30 MW).

¹² See, e.g., Initial Comments of MISO at 33 (urging the Commission to avoid “diverting industry attention to developing a ‘one-size-fits all approach’”); Comments of Southwest Power Pool, Inc., Docket No. RM26-4-000, at 2 (Nov. 21, 2025) (“Initial Comments of SPP”) (“Rather than pursuing a ‘one-size fits all’ approach, the Commission should consider allowing each Regional Transmission Organization . . . and its stakeholders the latitude to design for these differences.”); Comments of the New York Independent System Operator, Inc., Docket (continued . . .)

Owners strongly urge the Commission to consider other avenues that could support these ongoing efforts and equally provide guidance and certainty to the industry (e.g., a policy statement).

1. A One-Size-Fits-All Rule May Disrupt Ongoing State and Regional Efforts.

Numerous commenters agreed on the importance of interconnecting large loads to advance vital interests of national security, economic prosperity, and scientific leadership. The MISO Transmission Owners, like other commenters in the MISO region,¹³ highlighted the many proactive steps the region already has taken to alleviate many of the concerns outlined in the ANOPR and advance the interconnection of large loads.¹⁴ To insert a

No. RM26-4-000, at 4 (Nov. 21, 2025) (“While many of [the ANOPR’s] principles address issues that are widely occurring across the count[r]y, uniform solutions will not account for variations among regions resulting from unique region-specific planning, interconnection approaches, and market structures” and “urges the Commission to provide flexibility in how an ISO/RTO can address the rulemaking’s requirements to account for the unique circumstances and challenges that exist in its regions”). The California Independent System Operator Corporation also requests flexibility and the opportunity to seek independent entity variations. Comments of the California Independent System Operator Corporation on the Advanced Notice of Proposed Rulemaking, Docket No. RM26-4-000, at 6, 7-8 (Nov. 21, 2025) (“Initial Comments of CAISO”). Further, states and their regulatory agencies emphasize the need for state or region specific, tailored rules. Initial Comments of Arkansas PSC at 3 (urging the Commission “to support the state regulatory authorities by establishing voluntary best practices, [and] establish backstop authority only in instances of demonstrated delay or discrimination” and to “decline to impose the proposed nationwide rule in regions such as . . . MISO where sufficient processes already exist”).

¹³ See, e.g., Initial Comments of Indiana Energy Association at 1; Initial Comments of U.S. Chamber of Commerce at 2; Initial Comments of Arkansas PSC at 2; Initial Comments of Missouri PSC at 4; Initial Comments of MISO at 20; Initial Comments of Entergy at 2-5.

¹⁴ MISO Transmission Owners’ Initial Comments at 3-5 (providing examples of MISO Transmission Owners’ actions in the MISO region to facilitate the interconnection of 14.4 GW of large load as well as describing the “effort” to (continued . . .)

parallel federal process now risks duplicating these efforts, at best, and injecting delay and triggering litigation, at worst.

Similar to the MISO Transmission Owners, other stakeholders noted the proactive steps stakeholders in the MISO region are taking to address large load interconnection and the potential harm generic action could cause to those efforts at this time.¹⁵ For example, MISO suggests that the ANOPR’s attempt to bypass states through the Commission “could lead to less efficient proposals for interconnection of large loads and, consequently, make such interconnections more costly, ineffective, and more time consuming.”¹⁶ The Arkansas Public Service Commission notes that the MISO region has ongoing efforts to address large load interconnections that are specifically tailored to regional system needs, including MISO’s Expedited Project Review process, and ongoing state legislative and regulatory efforts to manage large load interconnections.¹⁷ The Public Service Commission of the State of Missouri notes that “the Expedited Project Review (EPR) process [in MISO] allows the RTO [and transmission owners] to advance urgent transmission projects in order to accommodate large load additions[,]” and that, furthermore, RTO “procedures

develop best practices “by the MISO Transmission Owners, MISO, states, and industry participants around the country”).

¹⁵ See, e.g., Initial Comments of MISO at 6-18, 20 (highlighting effective interconnection of large loads in MISO and urging the Commission to avoid approach bypassing input from MISO members and states); Initial Comments of the Organization of MISO States, Inc., Docket No. RM26-4-000, at 3-4, 9-10 (Nov. 21, 2025); Comments of the South Dakota Public Utilities Commission, Docket No. RM26-4-000, at 5-6 (Nov. 13, 2025) (“Initial Comments of South Dakota PUC”); Initial Comments of Arkansas PSC at 2-3; Initial Comments of Missouri PSC at 4; Initial Comments of Entergy at 4-5, 17; Initial Comments of ITC at 2-3.

¹⁶ Initial Comments of MISO at 20.

¹⁷ Initial Comments of Arkansas PSC at 2.

[complement] retail tariffs enacted under state authority, leaving no gaps between state and federal regulation of large load interconnections.”¹⁸ The joint comments of the Louisiana and Mississippi Public Service Commissions (“Louisiana and Mississippi Commissions”) state that “Louisiana, Mississippi and their respective state Commissions are working diligently, quickly, and effectively to attract and accommodate economic development, because the investment, job creation, tax, and other resulting benefits are sorely needed,” and that “state and RTO processes that have worked well should be accommodated and not changed.”¹⁹ The Louisiana and Mississippi Commissions also highlight that the ANOPR does not provide “sufficient” evidence that the current load interconnection process in MISO violates the FPA or has resulted in delays in large load interconnections.²⁰ Again, the MISO Transmission Owners urge caution before taking any generic action that would frustrate these efforts and divert critical resources away from interconnecting large loads, including data centers which are of national interest to this Administration.

2. *The Commission Should Consider Adopting a Policy Statement Rather than a One-Size-Fits-All Rule, Allowing for Maximum State and Regional Flexibility.*

The MISO Transmission Owners strongly urge the Commission to consider means other than generic action to support the ongoing efforts to interconnect large loads. Like the MISO Transmission Owners, numerous commenters oppose the adoption of a “one-size-fits-all” rule.²¹ However, as MISO points out, as an alternative to generic action, the

¹⁸ Initial Comments of Missouri PSC at 4.

¹⁹ Initial Comments of Louisiana and Mississippi Commissions at 6-7.

²⁰ *Id.* at 6.

²¹ *See, e.g.*, Comments of Consumer Energy Alliance, Docket No. RM26-4-000, at 2-3 (Nov. 21, 2025) (“Initial Comments of Consumer Energy Alliance”); Initial (continued . . .)

Commission could issue a policy statement to guide the industry processes to be used for large load interconnections.²² Such action by the Commission would avoid near-certain litigation and support ongoing regional efforts that are addressing many of the issues highlighted in the ANOPR.²³

Importantly, the comments in the docket provide little specific evidence showing large load interconnections in the MISO region are being stymied or undue discrimination, or risk thereof, towards large load interconnections akin to what gave rise to Order Nos. 888 or 2003.²⁴ As shown in the MISO Transmission Owners' and MISO's initial

Comments of Louisiana and Mississippi Commissions at 7; Comments of Eversource Energy, Docket No. RM26-4-000, at 3 (Nov. 21, 2025); Motion to Intervene and Comments of the South Carolina Office of Regulatory Staff, Docket No. RM26-4-000, at 3 (Nov. 21, 2025); Initial Comments of MISO at 1; Initial Comments of Indicated PJM Transmission Owners at 18; Initial Comments of AES at 7; Comments of Advanced Energy United, Docket No. RM26-4-000, at 20, 28 (Nov. 21, 2025) (“Initial Comments of Advanced Energy United”); Initial Comments of International Energy Credit Association, Docket No. RM26-4-000, at 7 (Nov. 21, 2025); Initial Comments of FirstEnergy at 2; Initial Comments of Consumer Energy Alliance at 2-3; Initial Comments of the New England States Committee on Electricity, Docket No. RM26-4-000, at 3 (Nov. 21, 2025).

²² Initial Comments of MISO at 5.

²³ *Id.* (stating the Commission should continue to allow regional and state development; “[a]lternatively, the Commission could refine the principles started by DOE and issue a policy statement[;]” or, if issuing a rule, allow for independent entity variations); Initial Comments of OPSI at 8-9.

²⁴ See Initial Comments of OPSI at 6 (no evidence of discrimination in the ANOPR unlike in the Order Nos. 888 and 2003 ANOPRs); *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Services by Public Utilities; Recovery of Stranded Costs by Public Utilities and Transmitting Utilities*, Order No. 888, 75 FERC ¶ 61,080, 1991–1996 FERC Stats. & Regs., Regs. Preambles ¶ 31,036, at 31,638-52 (1996) (explaining the need for reform and citing to specific examples of when open access tariffs were required under applicable law), *order on reh’g*, Order No. 888-A, 78 FERC ¶ 61,220, 1996–2000 FERC Stats. & Regs., Regs. Preambles ¶ 31,048, *order on reh’g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *reh’g denied*, Order No. 888-C, 82 FERC ¶ 61,046 (continued . . .)

comments, existing processes in the MISO region effectively facilitate interconnection of large loads, so there is no benefit at this time for standard large load interconnection procedures.²⁵

In sum, the MISO Transmission Owners reiterate what they noted in their initial comments, and what many others agree with: that the Commission should avoid disrupting the proactive state and regional efforts being made to interconnect large loads in the MISO region. Instead, the Commission could spur faster, more creative solutions by allowing MISO's industry participants "to continue focusing attention on efficiently interconnecting large loads pursuant to processes that reflect the unique circumstances of their members, states, stakeholders, and transmission systems."²⁶ Alternatively, the Commission could issue guidelines or a policy statement to guide the industry processes to be used for large load interconnections, while allowing industry participants to craft solutions through individual FPA section 205 filings tailored to each region's needs.

(1998), *aff'd in part & remanded in part sub nom. Transmission Access Policy Study Group v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff'd sub nom. New York v. FERC*, 535 U.S. 1 (2002); *Standardization of Generator Interconnection Agreements and Procedures*, Order No. 2003, 104 FERC ¶ 61,103, at P 19 (2003) ("The record underlying Order No. 888 showed that public utilities owning or controlling jurisdictional transmission facilities had the incentive to engage in, and had engaged in, unduly discriminatory transmission practices."), *order on reh'g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh'g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh'g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff'd sub nom. Nat'l Ass'n of Regul. Util. Comm'rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007), *cert. denied*, 552 U.S. 1230 (2008).

²⁵ Initial Comments of the MISO Transmission Owners at 5-8; Initial Comments of MISO at 6-13.

²⁶ Initial Comments of MISO at 5.

B. The Commission Should Avoid Upsetting Existing Federal and State Jurisdictional Boundaries (Principle 1).

1. The Commission Should at the Very Least Clarify that They Are Not Asserting Jurisdiction Over Bundled Retail Rates.

The MISO Transmission Owners reemphasize their initial comments, which urged the Commission to carefully consider jurisdictional issues, particularly as to bundled retail rates, so as not to upset the existing boundaries of federal and state jurisdiction and to support regionalized approaches to facilitate the interconnection of large loads.²⁷ The MISO Transmission Owners submit that a collaborative, cooperative approach may be more successful in achieving the ANOPR’s stated goals.²⁸

In particular, the MISO Transmission Owners remain concerned about the extent to which the ANOPR is purporting to exercise jurisdiction over retail load interconnections. If the Commission decides generic action in regard to this ANOPR is required, the Commission should clarify that “it is not exercising jurisdiction over load interconnections where the load is the recipient of bundled transmission service under state law.”²⁹ As

²⁷ MISO Transmission Owners’ Initial Comments at 14, 16-17.

²⁸ See, e.g., Initial Comments of the California Public Utilities Commission, Docket No. RM26-4-000, at 2 (Nov. 21, 2025) (“It would be most efficient and constructive for the rulemaking to divide areas of responsibility and carve out the work already done by the states. The [California Public Utilities Commission] urges FERC to continue the tradition of cooperative federalism enshrined by the Federal Power Act and coordinate state and federal action for engineering-driven and efficient outcomes necessary to reach our mutual goals.”); Initial Comments of New Mexico PRC at 2 (“FERC should narrowly tailor its final rule to ensure continuation of state priorities and should look for comprehensive ways to enact a cooperative approach to interconnection of large loads that comport with the state’s own legislative and constitutional directives.”).

²⁹ MISO Transmission Owners’ Initial Comments at 16-17; see also Initial Comments of Duke Energy at 7 (asking that the Commission only apply new large load interconnection procedures and agreements where “transmission service is provided to customers as an unbundled product”); Initial Comments of Entergy at 6 (continued . . .)

previously noted, failing to do so may “risk[] delaying the interconnection of large loads[,] and potentially jeopardiz[e] the nation’s ambitious technological goals, national security, and economic interests.”³⁰ Furthermore, the Commission would better serve the objectives of interconnecting large load faster by supporting state and regional efforts, rather than a one-size-fits-all approach, and that any national rule is likely to take years to finalize.

2. *Any Untested Broad Jurisdictional Assertion May Trigger Litigation and Will Reduce Investor Certainty and Lead to Delays.*

The MISO Transmission Owners submit that, if the Commission asserts jurisdiction over large loads, “it would interfere with the balancing performed by state regulators in retail rate cases”³¹ while “the states are well positioned to make decisions on load interconnections necessary to support the best interests of their citizens.”³² The MISO Transmission Owners support efforts to engage with other parties to work together to “explore consensus solutions . . . while avoiding disputes over jurisdiction that would impede achieving our shared goals.”³³

In particular, MISO Transmission Owners share commenters’ concerns that the ANOPR’s assertion of jurisdiction will cause delays, trigger litigation, and enhance

(asking that the Commission be careful to ensure that any final rule does not overstep jurisdictional bounds into bundled retail terms and rates); Initial Comments of Indicated PJM Transmission Owners at 32 (cautioning against raising serious jurisdictional issues by dictating what transmission costs should appear on a retail customer’s bill); Initial Comments of EEI at 25.

³⁰ MISO Transmission Owners’ Initial Comments at 19 (citation omitted).

³¹ Initial Comments of NARUC at 4.

³² *Id.* at 6.

³³ *Id.*

uncertainty.³⁴ MISO Transmission Owners agree that Commission action that “refrain[s] from raising serious jurisdictional issues . . . will avoid the delay in litigating and resolving the jurisdictional issues and, hence, will speed interconnection.”³⁵ Additionally, any Commission attempt to exert jurisdiction over retail rates has the potential to create unintended consequences such as the reclassification of large swaths of retail load currently under the regulatory purview of the states.³⁶ Lastly, any Commission attempt to regulate retail rates could lead to litigation of the United States Supreme Court’s “major questions doctrine,” given that clear congressional authority would have to be granted to justify such an erosion of state jurisdiction.³⁷

³⁴ See, e.g., Initial Comments of Equinix at 5 (urging a collective and coordinate approach because “[t]he pace of integrating large loads needed to serve the national interests identified in the Proposed ANOPR cannot wait for jurisdictional debates to be settled or for lengthy, uncoordinated procedural processes to work their way to conclusion”); Initial Comments of Louisiana and Mississippi Commissions at 7-8; Initial Comments of AES at 5 (“Commission should exercise caution to avoid potential jurisdictional pitfalls that could ultimately frustrate the ANOPR’s goal of speed to power and the industry’s need for certainty on approach.”); Initial Comments of NRG at 5-6; Initial Comments of DTE at 15 (“[S]uch challenge to the jurisdictional foundations of FERC’s reforms could impede investment for years.”); Initial Comments of N.Y. State Utility Intervention Unit at 3-4.

³⁵ Initial Comments of Indicated PJM Transmission Owners at 32.

³⁶ See, e.g., Initial Comments of the South Dakota PUC at 4 (“If the seven-factor test is not preserved, expanding which facilities classify as transmission could create a new class of customers whose rights and privileges extend beyond, and conflict with, state law.”); Comments of the North Carolina Utilities Commission, Docket No. RM26-4-000, at 2 (Nov. 20, 2025) (“[T]he [North Carolina Utilities Commission] remains concerned that invoking the Commission’s ‘seven-factor test’ to delineate transmission from local distribution could, in practice, redefine portions of retail service connections as FERC-jurisdictional.”).

³⁷ See, e.g., Comments of the Pennsylvania Public Utility Commission, Docket No. RM26-4-000, at 8-11 (Nov. 21, 2025); Comments of the Pennsylvania Office of Consumer Advocate and Delaware Division of the Public Advocate, Docket No. RM26-4-000, at 15-16 (Nov. 21, 2025); Initial Comments of EEI at 28.

In sum, if the Commission decides to pursue a final rule that attempts to redraw jurisdictional lines, it is all but certain that this process will be mired in years of comments, rehearing requests, compliance filings, and ultimately, risky legal challenges. Meanwhile, transmission owners actively engaged with large loads, including data centers of national interest to this Administration, and large loads looking to interconnect on much shorter timelines to remain globally competitive, will be stymied by the likely prolonged regulatory uncertainty that undermines the very goals of the ANOPR.

C. The Commission Should Maintain Rolled-In Rate Treatment as the Default for Necessary Network Upgrades (Principle 8).

Like many commenters, the MISO Transmission Owners urge the Commission to maintain its long-standing policy in favor of rolled-in rate treatment for network upgrades triggered by load additions, including large load additions, as opposed to requiring direct assignment of network upgrades associated with large load interconnections.³⁸ Decades of

³⁸ See, e.g., Initial Comments of EEI at 9 (“The Commission’s longstanding precedent is that network upgrade costs are rolled into transmission providers’ rates and charged to all system customers. As a result, all customers pay for their share of the transmission system based on their connection to and use of the system.”); Initial Comments of Indicated PJM Transmission Owners at 11 (“The Commission has found that costs applicable to integrated transmission facilities that are necessary for the interconnection of a load customer but that also benefit the network as a whole and all of its customers are appropriately rolled into transmission rates.”); Initial Comments of FirstEnergy at 7 (“The Commission has long maintained a policy in favor of socializing transmission costs rather than directly assigning those costs to individual customers, especially when the network upgrades benefit the broader grid or regional reliability.”); Initial Comments of the PPL Companies re Advanced Notice of Proposed Rulemaking on the Interconnection of Large Loads to the Interstate Transmission System, Docket No. RM26-4-000, at 10 (Nov. 21, 2025) (“Initial Comments of PPL Companies”) (“Should the Commission adopt the ANOPR and assume control over large load interconnection, it should interpret this language consistent with its longstanding policy that net-work customers pay for network upgrades.”); Comments of National Grid, Docket No. RM26-4-000, at 13-14 (Nov. 21, 2025) (“Commission policy should allow rate-based recovery of network upgrades through rates charged to all (continued . . .)

Commission precedent emphasize that, as a general matter, because of the integrated nature of the transmission system, network upgrades benefit all transmission customers, and it is therefore appropriate that the costs of these network upgrades be allocated to all transmission customers through rolled-in rates.³⁹ As the MISO Transmission Owners stated in their initial comments,⁴⁰ the ANOPR provides no evidence to support such a

customers, subject to State oversight, because network upgrades benefit all customers using the integrated transmission system and therefore, unlike ‘sole-use’ customer interconnection facilities, they should be paid for by all customers using the transmission system.”); Comments of WIRES, Docket No. RM26-4-000, at 6 (Nov. 21, 2025) (highlighting that because the transmission system provides benefits for all transmission customers, “the Commission has a long-standing policy in favor of rolled-in rates for integrated systems”).

³⁹ See, e.g., *Pub. Serv. Co. of Colo.*, 62 FERC ¶ 61,013, at 61,061 (1993) (stating, among other things, that “even if a customer can be said to have caused the addition of a grid facility, the addition represents a *system* expansion used by and benefitting *all* users due to the integrated nature of the grid”); *Entergy Servs., Inc. v. FERC*, 319 F.3d 536, 542-44 (D.C. Cir. 2003) (upholding Commission determination that short-circuit and stability network upgrades benefit all users of the transmission system); Order No. 2003 at PP 21, 65 (stating that “[m]ost improvements to the Transmission System, including Network Upgrades, benefit all transmission customers” and “[f]acilities beyond the Point of Interconnection are part of the Transmission Provider’s Transmission System and benefit all users”); Order No. 2003-A at P 585 (stating that “the Commission has long held that the Transmission System is a cohesive, integrated network that operates as a single piece of equipment, and that network facilities are not ‘sole use’ facilities but facilities that benefit all Transmission Customers”); *id.* at P 599 (stating that the Commission does “not believe that the costs of Network Upgrades required to interconnect a Generating Facility to the Transmission System of a non-independent Transmission Provider are properly allocable to the Interconnection Customer through direct assignment because upgrades to the transmission grid benefit all customers”); *Nat’l Ass’n of Regulatory Util. Comm’rs v. FERC*, 475 F.3d 1277, 1285 (D.C. Cir. 2007) (upholding the Commission’s determination that network upgrades benefit the entire network, noting that the D.C. Circuit had previously endorsed the approach of assigning the costs of system-wide benefits to all customers on an integrated transmission grid) (citing *W. Mass. Elec. Co. v. FERC*, 165 F.3d 922, 927 (D.C. Cir. 1999))).

⁴⁰ MISO Transmission Owners’ Initial Comments at 26-27.

fundamental shift in how costs of network upgrades are allocated to transmission service customers.

Several commenters support the ANOPR proposal to directly assign 100% of network upgrade costs triggered by interconnection of large load owners to the load owners, arguing generally that this is consistent with cost causation or that it prevents unfairly shifting costs to existing load/ratepayers.⁴¹ As an initial matter, the MISO Transmission Owners generally agree with the principle that large load owners should be responsible for the costs they cause. Through rolled-in rate treatment for network upgrades, allocation of cost to cost causers is achieved, consistent with Commission precedent discussed above—network upgrades by definition benefit all transmission customers, so it is consistent with cost causation principles that all transmission customers, including large load owners, be allocated costs payable through transmission rates when they take transmission service.⁴² In MISO, load typically pays for transmission service

⁴¹ See, e.g., Comments of Transmission Access Policy Study Group, Docket No. RM26-4-000, at 22-27 (Nov. 21, 2025) (“Initial Comments of TAPS”); Motion to Intervene and Comments of Tri-State Generation and Transmission Association, Inc., Docket No. RM26-4-000, at 8 (Nov. 21, 2025) (“Initial Comments of Tri-State”); Comments of the People of the State of Illinois by the Office of the Illinois Attorney General, Docket No. RM26-4-000, at 11-12 (Nov. 21, 2025); Comments of the Public Utilities Commission of Ohio’s Office of the Federal Energy Advocate, Docket No. RM26-4-000, at 5 (Nov. 21, 2025); Comments of Invenergy Wind Development North America LLC, Invenergy Solar Development north America LLC, and Invenergy Thermal Development Holdings LLC, Docket No. RM26-4-000, at 9-10 (Nov. 21, 2025); Comments of the Large Public Power Council, Docket No. RM26-4-000, at 14-15 (Nov. 21, 2025) (“Initial Comments of LPPC”); Initial Comments of Consumer Energy Alliance at 3.

⁴² See Initial Comments of EEI at 9 (“[C]ustomers pay for their share of the transmission system based on their connection to and use of the system and thus, large load customers will, by virtue of their size, pay for their proportional share of the costs.”).

under Schedule 9 of the MISO Open Access Transmission, Energy and Operating Reserve Markets Tariff (“Tariff” or “MISO Tariff”), and from there the relevant load-serving entity allocates costs to retail customers. To the extent there are concerns that the large load interconnection customer may not fully materialize or remain a transmission customer for the expected duration or otherwise result in unjust cost shifting, there are other mechanisms to ensure existing customers are not unfairly subsidizing the new large load customers (e.g., security, minimum take provisions).

Moreover, if a large load triggers the need for distribution-level upgrades or upgrades that otherwise are determined under the seven-factor test to be distribution, then nothing in this ANOPR or any subsequent rulemaking should interfere with how states choose to allocate costs of such facilities consistent with their retail ratemaking authority, consistent with the ANOPR’s First Principle.

Finally, the MISO Transmission Owners reiterate that transmission owners should be able to earn a reasonable return on investments in their transmission systems, consistent with court precedent.⁴³

⁴³ See *FPC v. Hope Nat. Gas Co.*, 320 U.S. 591, 603 (1944); *Bluefield Waterworks & Improvement Co. v. Pub. Serv. Comm’n of W. Va.*, 262 U.S. 679, 690 (1923); see also Initial Comments of Indicated PJM Transmission Owners at 10 (“[The Commission] must ensure that such upgrades are recoverable in the transmission-owning utilities’ rate base on which they are permitted to earn a reasonable rate of return. Doing so is vital to attracting sufficient investment in necessary transmission infrastructure as well as protecting the financial viability of the utilities the Commission regulates.”); Initial Comments of ITC at 4 (“Utilities must be able to attract capital to facilitate these large load interconnections, and that requires a fair return on that capital.”); Initial Comments of EEI at 11 (“[T]hose investments must be made in a constructive and predictable environment that provides the opportunity to earn a return of and on the entirety of the transmission network.”).

D. The Commission Should Maintain Current Cost Responsibility for Transmission Service and Ancillary Services or Allow Regional Flexibility (Principles 11 and 12).

The MISO Transmission Owners reiterate their concern with the ANOPR's Eleventh⁴⁴ and Twelfth Principles⁴⁵ and the proposed departure from current practices for cost responsibility of transmission and ancillary services, implicating potentially significant undue discrimination and cost causation issues.⁴⁶ Maintaining the status quo of cost responsibility for transmission service and ancillary services will provide large load owners and transmission providers clarity and certainty and avoid preventable and unnecessary litigation. At minimum, the MISO Transmission Owners urge the Commission to permit regional flexibility, including retention of current transmission and ancillary services cost responsibility methodologies, which require: (1) all Transmission Customers to take transmission service based on the full (i.e., gross) amount of their load, without netting; and (2) load to be responsible for any ancillary services based on actual usage, rather than peak usage. Multiple comments agree,⁴⁷ highlighting practical issues with the principles as proposed.

⁴⁴ ANOPR at P 28.

⁴⁵ *Id.* at P 29.

⁴⁶ MISO Transmission Owners' Initial Comments at 31-33. ("The Eleventh Principle appears to net the load and generation for purposes of establishing the transmission service requirements, which is not permitted by MISO's Tariff. Regarding ancillary service, load pays for ancillary services based on use." (citation omitted)).

⁴⁷ *See, e.g.*, Initial Comments of SPP TO Group at 6 (requesting the Commission modify Principle 11 "to the extent this is meant to create a transmission billing rule based on net usage of grid connected generation versus co-located generation"); Initial Comments of ODEC at 10-11("The Commission should ensure that large loads pay their fair share of costs."); Initial Comments of TAPS at 4; Initial Comments of Tri-State at 9 ("[T]ransmission customer should continue to pay for transmission services based on gross load, because the transmission system still
(continued . . .)

Specifically, there are practical issues posed by the Eleventh Principle as proposed because of the fundamental differences between generation resources and load owners. Basing load owners' transmission service responsibilities on their withdrawal rights alone fails to account for transmission service large load owners will use during the planned and unplanned outages that generators experience, i.e., times when large load owners will benefit from the broader transmission system. Given that, large load owners under the Eleventh Principle as proposed would benefit from the transmission system "without adequately contributing to its upkeep and maintenance," which would inappropriately "shift the cost to other ratepayers that should be borne by the large load."⁴⁸ By not requiring that large load pay for the benefits it receives from the transmission system, the cost responsibility proposed in the Eleventh Principle would not be applied in a manner "that is at least roughly commensurate with benefits."⁴⁹

stands ready to serve the gross load regardless of the quantity of capacity and energy that is typically being transmitted."); Initial Comments of the WEC Companies, Docket No. RM26-4-000, at 13 (Nov. 21, 2025); *see also* Initial Comments of PPL Companies at 19-20 (requesting the Commission "confirm [Principles 11 and 12] to mean that co-located load must pay its full share of the costs of the transmission system and for ancillary services, without subsidization by network load").

⁴⁸ Initial Comments of ODEC at 11. Like the MISO Transmission Owners' Initial Comments, Old Dominion Electric Cooperative also highlights that "large loads and generation resources must be metered separately so accurate data is available to allocate transmission costs appropriately." Initial Comments of ODEC at 11. *See also* Initial Comments of PPL Companies at 19 ("The Commission should confirm . . . that co-located load must pay its full share of the costs of the transmission system and for ancillary services, without subsidization by network load.").

⁴⁹ *Mun. Energy Agency v. Pub. Serv. Co. of Colo.*, 189 FERC ¶ 61,099, at P 41 (2024) (citing *Ill. Com. Comm'n v. FERC*, 576 F.3d 470, 476), *order on reh'g*, 190 FERC ¶ 61,158 (2025).

Based on that explanation, arguments that support the Eleventh Principle’s proposal to charge large load owners only for their net impact to the transmission system are misplaced.⁵⁰ For example, certain commenters argue that assessing transmission service charges irrespective of any co-located generation resources is inconsistent with cost causation principles.⁵¹ Not so. The Commission has repeatedly rejected cost causation arguments seeking to lower transmission charges based on actual use of the transmission system.⁵² As we stated previously, it is critical for cost allocation purposes that load and

⁵⁰ See, e.g., Initial Comments of Geronimo Power at 19-21; Comments of EDF Power Solutions, Inc., Docket No. RM26-4-000, at 17-18 (Nov. 21, 2025); Comments of Terraflux LLC, Docket No. RM26-4-000, at 2 (Nov. 4, 2025) (“Initial Comments of Terraflux”); Comments of ENGIE North America, Inc., Docket No. RM26-4-000, at 12-13 (Nov. 21, 2025) (“Initial Comments of ENGIE”); Comments of Vistra Corp., Docket No. RM26-4-000, at 4 (Nov. 21, 2025) (“Initial Comments of Vistra”).

⁵¹ See, e.g., Initial Comments of Geronimo Power at 18-19 (first quoting *Constellation Mystic Power, LLC v. FERC*, 45 F.4th 1028, 1050 (D.C. Cir. 2022); then citing *City of Lincoln v. FERC*, 89 F.4th 926, 930 (D.C. Cir. 2024); and then quoting *El Paso Elec. Co. v. FERC*, 76 F.4th 352, 363 (5th Cir. 2023)); Initial Comments of ENGIE at 13 (“In terms of cost allocation, charging based on gross load shifts costs unfairly to customers who have already invested in mitigating their grid impact.”); see also Initial Comments of Vistra at 22 (“[T]he lack of rates, terms, and conditions for transmission-level load interconnection increases the likelihood that transmission rates do not reflect fundamental cost causation principles and are therefore unjust and unreasonable.” (citing *Sw. Power Pool, Inc.*, 175 FERC ¶ 63,023, at P 363 (2021) (a non-precedential initial decision of an Administrative Law Judge))).

⁵² See, e.g., *Amtrak v. PPL Elec. Utils. Corp.*, 171 FERC ¶ 61,237, at PP 40-43 (rejecting Amtrak’s cost causation arguments that sought to lower its transmission charges based on actual use of the transmission system, finding that Amtrak was appropriately being charged network service under the PJM tariff for its entire load because Amtrak’s load had been designated as network load and was being served by the output of a designated Network Resource), *order on reh’g & clarification*, 173 FERC ¶ 61,043, at P 14 (2020); Order No. 888-A at 30,257 (finding that a split system (i.e., division of a discrete load between point-to-point and network services) creates the potential for a customer to evade some or all of its load ratio share cost responsibility for network services by using behind the meter generation (continued . . .))

generation are metered separately and load is treated as an in-front-of-the-meter customer because a hybrid facility that is not fully islanded from the transmission system is still benefitting from the transmission system.⁵³ Moreover, the argument that only charging for net impact to the transmission grid will “accelerate the ability of large loads to obtain power on a timely basis”⁵⁴ glosses over cost causation and undue discrimination concerns.

Similarly, arguments that support the Twelfth Principle as proposed, i.e., charging large load customers for ancillary services based on peak demand,⁵⁵ fail to appreciate that this proposal could disrupt current cost allocation methodologies and violate cost causation principles. As MISO explained, load currently pays for ancillary services based on actual

during monthly peaks to reduce its load ratio share below its actual, typical monthly peak usage, resulting in a rate that is subsidized by other network customers); *id.* at 30,259 (explaining that “splitting a discrete load is antithetical to the concept of network service” because “a load at a discrete point of delivery cannot be partially integrated—it is either fully integrated or not integrated”); *Idaho Power Co.*, 106 FERC ¶ 61,329, at PP 20-21 (2004) (rejecting Bonneville Power Administration’s attempt to remove certain of its load from its load ratio share); *Ameren Servs. Co. v. Prairieland Energy Inc.*, 131 FERC ¶ 61,125, at P 27 (2010) (finding that network customer failed to comply with the tariff by not designating its total load as network load); *Ariz. Pub. Serv. Co.*, 151 FERC ¶ 61,191, at P 26 (2015) (finding that a network customer’s request to designate less than its entire load as network load violated both the transmission provider’s open access transmission tariff and longstanding Commission policy, which require network customers to designate their entire load as network load to receive network).

⁵³ MISO Transmission Owners’ Initial Comments at 24.

⁵⁴ Initial Comments of Geronimo Power at 19.

⁵⁵ Initial Comments of Terraflux at 2; Initial Comments of NREMC at 5-6; Supporting Comments of Constellation Energy Generation, LLC, Docket No. RM26-4-000, at 36 (Nov. 21, 2025) (“Initial Comments of Constellation”); Initial Comments of ENGIE at 14. Similarly, the MISO Transmission Owners also disagree with the Public Interest Organizations’ Comments to the extent that they advocate for utilities calculating ancillary services based on peak demand. Comments of Public Interest Organizations, Docket No. RM26-4-000, at 40 (Nov. 21, 2025).

use on an hourly basis, and costs are allocated to load based on their load ratio share.⁵⁶ MISO further states that this approach is consistent with cost causation principles.⁵⁷

Finally, as the MISO Transmission Owners' Initial Comments reference,⁵⁸ the ANOPR does not explain why load is not similarly situated to large loads/hybrid facilities such that it may be treated differently. Rather than raise potential issues of undue discrimination, the MISO Transmission Owners urge the Commission to retain current cost responsibility methodologies for both transmission service⁵⁹ and ancillary services⁶⁰ and permit the regional and utility differences that already exist, as advocated by multiple comments.

⁵⁶ Initial Comments of MISO at 28 (“In the Day Ahead and Real Time Operating Reserve Markets, the costs for Ancillary Services products (e.g., spinning, supplemental, regulation and short-term reserves) are paid in MISO by the load on an hourly basis. The ancillary services needed for a Reserve Zone are procured from generation in that Reserve Zone and the costs are allocated to load based on their load ratio share in the Reserve Zone. In this way, load pays for the actual use of ancillary services.”).

⁵⁷ Initial Comments of MISO at 28.

⁵⁸ MISO Transmission Owners' Initial Comments at 32.

⁵⁹ *See, e.g.*, Initial Comments of CAISO at 15.

⁶⁰ *See, e.g.*, Initial Comments of LPPC at 15-16; Initial Comments of Tri-State at 9.

E. The Commission Should Either Reject the Option to Build Principle or Set Strict Standards for Its Use and Continue to Allow Independent Entity Variations for Funding (Principle 9).

1. The Commission Should Reject the Option to Build Proposal.

The MISO Transmission Owners agree with stakeholders who oppose extending the option to build to large load owners.⁶¹ The Commission should decline to adopt this principle⁶² for a few simple reasons.

First, large load owners typically have not been involved in construction of transmission facilities and are not in the same position as transmission owners when it comes to knowledge and expertise regarding transmission facilities.⁶³ While large load

⁶¹ See, e.g., Initial Comments of Indicated PJM Transmission Owners at 32-35; Initial Comments of ITC at 5; Initial Comments of PPL Companies at 3; Initial Comments of SPP TO Group at 8-9; *see also* Initial Comments of MISO at 26 (“MISO views this principle [about option to build] as impractical.”); Initial Comments of EEI at 13 (“[P]roviding large load customers with the option to build . . . raises significant reliability concerns that must be addressed.”).

⁶² ANOPR at P 26.

⁶³ See, e.g., Initial Comments of MISO at 26 (“As a practical matter, MISO notes that the option to build is rarely chosen by generator interconnection customers in MISO. However, when this option is chosen by interconnection customers, they are typically power companies that have utility branches and already have expertise in transmission. Loads are not in a similar position and do not have this expertise. Moreover, bulk power system owners, operators, and users must register with [North American Electric Reliability Corporation (“NERC”)] to ensure compliance with mandatory reliability standards. This includes generators. However, loads are not currently required to register with NERC. Therefore, there would currently be no responsibility or accountability for loads that build interconnection facilities or network upgrades. Consequently, MISO views this principle as impractical.”); Initial Comments of Indicated PJM Transmission Owners at 32-35 (raising concerns that large load customers will obligate the extremely limited number of professionals able to do this work, risking potential bottlenecks and slow downs for everyone); Initial Comments of SPP TO Group at 9-10 (“Large load interconnection customers are not public utilities and lack experience constructing or developing those facilities. It would be unreasonable to place responsibility for constructing crucial energy infrastructure in the hands of entities that have no experience doing so.”); *see also* Initial Comments of Consumers Energy at 10
(continued . . .)

owners may be sophisticated in other technical fields, there is no demonstration that these customers would bring similar experience to the construction of integrated network transmission facilities to construct, and allowing them to do so could introduce risks to grid reliability. In addition, introducing third-party construction into the already technically complex area of large load interconnections will increase complexity and oversight burdens for transmission owners and providers without delivering meaningful efficiency gains.⁶⁴ Indeed, allowing large load customers to have an option to build could slow down the objective of interconnecting large load faster.

Second, contrary to the position of several stakeholders who support this principle,⁶⁵ the justification for providing generators the option to build provided in Order Nos. 2003 and 845⁶⁶ is not analogous for large loads. The Commission in Order No. 845, for example, was concerned that an interconnecting generator “may pay more and/or wait longer for the customers construction of the transmission provider’s interconnection

(expressing concern “that allowing large load customers the option to build may carry unintended reliability risks given that many large load customers are data centers or other large industrial customers that lack the industry expertise required to ensure safe and reliable grid operations”).

⁶⁴ See SPP TO Group at 10 (“Granting large load an option to build, absent strict safeguards, would seriously undermine the goals of the ANOPR.”).

⁶⁵ Comments of the Solar Energy Industries Association, Docket No. RM26-4-000, at 19-20 (Nov. 21, 2025); Comments of Eolian L.P. on the Advance Notice of Proposed Rulemaking, Docket No. RM26-4-000, at 35-36 (Nov. 21, 2025); Initial Comments of Advanced Energy United at 25-26; Initial Comments of Constellation at 26-27.

⁶⁶ *Reform of Generator Interconnection Procedures and Agreements*, Order No. 845, 163 FERC ¶ 61,043 (2018), *order on reh’g & clarification*, Order No. 845-A, 166 FERC ¶ 61,137, *order on reh’g & clarification*, Order No. 845-B, 168 FERC ¶ 61,092 (2019).

facilities and stand-alone network upgrades.”⁶⁷ Here, there is no evidence that providing a load interconnection customer the option to build would result in greater cost and construction efficiencies than that of the status quo. In fact, as evidenced in our comments, MISO’s comments, and the comments of other stakeholders in the MISO region, there are already processes in place to ensure the timely interconnection of large loads, such as the EPR process.⁶⁸

Finally, as a few commenters noted, an option to build may exacerbate jurisdictional problems about federal and state authority⁶⁹ or create conflicting standards.⁷⁰ For these reasons, the MISO Transmission Owners do not support providing large loads with the option to build.

2. *If the Commission Allows for the Option to Build, It Should Set Strict Standards to Avoid Reliability Problems.*

Despite these risks, if the Commission creates an option to build for large load interconnections, MISO Transmission Owners support the Edison Electric Institute’s position that “grid safety and reliability must be the guiding principles.”⁷¹ Maintaining the

⁶⁷ Order No. 845 at P 86.

⁶⁸ See MISO Transmission Owners’ Initial Comments at 7-8, 11; Initial Comments of MISO at 9-13; *see also supra* at note 15.

⁶⁹ See, e.g., Initial Comments of LPPC at 15 (“Letting a data center or other load construct facilities intrudes on state jurisdiction and the decision should be left to states and local governing bodies.”); Initial Comments of SPP at 21 (highlighting that “state laws . . . restrict who can build and own transmission”).

⁷⁰ See, e.g., Initial Comments of ITC at 5 (allowing the option to build for large loads could create fragmented construction practices and inconsistent adherence to technical standards that could undermine or threaten reliability of the transmission system).

⁷¹ Initial Comments of EEI at 13-15.

standards and specifications of the transmission owners is critical to ensuring grid safety and reliability. Any option to build should be limited to transmission owner interconnection facilities and stand-alone network upgrades to avoid any broader system impacts, and must require adherence to all applicable NERC requirements.⁷²

For these reasons, should the Commission take this approach, MISO Transmission Owners support Edison Electric Institute's recommendations that: (1) any option to build is limited to transmission owner interconnection facilities and stand-alone network upgrades;⁷³ (2) any facility must be built to the standards and specifications provided in advance by transmission owners and adhere to NERC requirements; (3) engineering design, equipment, and construction for any option to build must be pre-approved by the relevant transmission owner; (4) any contractor used by the large load customer be from an approved list of contractors; (5) the transmission owner must have oversight of activities to satisfy compliance standards and specifications; and (6) any final rule must also indemnify the transmission owner from liability resulting from construction of facilities. Setting the above minimum set of standards for an option to build is essential to protecting the reliability of the transmission system.⁷⁴

3. *The Commission Should Allow RTOs/ISOs to Request Independent Entity Variations to Preserve Transmission Owner Initial Funding.*

The MISO Transmission Owners support comments that encourage the Commission to allow transmission owners to fund and earn a return on facilities they are

⁷² See *id.* at 14.

⁷³ For the avoidance of doubt, these facilities would not include any facilities used to transmit energy to bundled retail load.

⁷⁴ Initial Comments of EEI at 14-15.

required to operate and maintain.⁷⁵ If the Commission provides large loads with an option to build, and any final rule does not explicitly allow for transmission owner initial funding, then the MISO Transmission Owners request that the Commission allow MISO and the MISO Transmission Owners to request deviations from any final rule to preserve the funding approach that has worked for the MISO region.⁷⁶

⁷⁵ See, e.g., Initial Comments of ATC at 20-21; Initial Comments of Indicated PJM Transmission Owners at 24-26 (“The construction, ownership, operation, and maintenance of network upgrades also creates significant financial risk to the PJM TOs, whether those network upgrades are for generator customers or designed to serve large load. While PJM TOs already own and operate some generator interconnection related network upgrades with no compensation, the number of network upgrades that will be required to accommodate large load data center customer interconnections necessary to satisfy federal policy goals surrounding the expeditious development of artificial intelligence infrastructure is already significantly increasing, and will continue to do so into the foreseeable future. As the number of transmission upgrades for which a transmission owner does not earn a return grows, so does capital risk.” (citation omitted)); see also Comments of the New York Transmission Owners, Docket No. RM26-4000, at 15 (Nov. 21, 2025) (“The treatment of cost allocation and option-to-build rights involves constitutional property rights, statutory directives under the FPA, and state jurisdiction over siting and permitting, in addition to Transmission Owners’ obligations to ensure the safe design, construction, and operation of the Bulk Electric System. Any federal action on these matters should prioritize preserving established state roles, respecting property rights, and safeguarding the financial and operational structures that underpin system reliability.”).

⁷⁶ See Order No. 845-A at PP 20-21; *Midcontinent Ind. Sys. Operator, Inc.*, 169 FERC ¶ 61,221, at P 44 (2019) (accepting MISO’s proposed independent entity variation to reconcile the option to build with transmission owner initial funding in the MISO Tariff).

II. CONCLUSION

The MISO Transmission Owners respectfully request that the Commission consider these reply comments and their initial comments in any future rulemaking in this proceeding.

Respectfully submitted,

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